IN THE SUPREME COURT OF INDIA

CRIMINAL PROCEDURE & POLICE POWERS JURISDICTION

(Constitution Bench (5 Judges))

CASE NUMBER: Writ Petition (Crl.) No. 68 of 2008 **CNR: SCIN010000682008**

REPORTABLE CITATION: (2014) 2 SCC 1 DATE: November 12, 2013

CORAM: Hon'ble P. Sathasivam, C.J., B.S. Chauhan, Ranjana P. Desai, Ranjan Gogoi, S.A. Bobde , JJ.

Lalita Kumari v. Government of Uttar Pradesh and Others

Lalita Kumari ...PETITIONER(S)

VERSUS

Government of Uttar Pradesh & Others ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Code of Criminal Procedure, 1973, Indian Penal Code, 1860 | Sections: Section 154 CrPC, Section 156(3)

Five-Judge Constitution Bench ruling declaring that registration of FIR under Section 154 CrPC is mandatory upon receipt of information disclosing commission of a cognizable offence. Police officers are legally obligated to register an FIR whenever someone reports a serious crime. Preliminary inquiry is only allowed in exceptional cases like matrimonial disputes, medical negligence, or corruption.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

Registration of FIR is mandatory under Section 154 of the Code if the information discloses commission of a cognizable offence and no preliminary inquiry is permissible in such a situation. If the information does not disclose a cognizable offence but indicates the necessity for an inquiry, a preliminary inquiry may be conducted only to ascertain whether a cognizable offence is disclosed or not within a maximum period of seven days.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Petition Disposed with Binding Directions (Outcome: Guidelines Issued)

Precedential Authority: Good Law (Binding Precedent)

LEXGUARD CRYPTOGRAPHIC REGISTERED SEAL • STATUTORY JUDICIAL ARCHIVE

`Section 65B IEA / Section 63 BSA • Immutable Repository Authority Record`